



Dangerous Drugs Act 1967

1967 CHAPTER 82

An Act to provide for the control of drug addiction
and to make further provision with respect to drugs.
[27th October 1967]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Without prejudice to the generality of section 11 of the Dangerous Drugs Act 1965 (in this Act referred to as “the principal Act”), the powers of the Secretary of State under that section (which authorises the making of regulations for preventing the improper use of drugs) shall include power to make regulations—

Control of
drug addiction
1965 c. 15.

- (a) for requiring any medical practitioner who attends a person who he considers, or has reasonable grounds to suspect, is addicted (within the meaning of the regulations) to drugs of any description to furnish, to such authority as may be specified by the regulations, such particulars with respect to that person as may be so specified;
- (b) for prohibiting any medical practitioner from administering, supplying and authorising the administration and supply to persons so addicted, and from prescribing for such persons, such drugs as may be so specified except under the authority and in accordance with the conditions of a licence issued by the Secretary of State in pursuance of the regulations.

(2) In the event of a contravention of regulations made by virtue of this section or of conditions of a licence issued thereunder, the Secretary of State may, subject to and in accordance with section 2 of this Act, give a direction in respect of the medical practitioner concerned prohibiting him from prescribing,

administering and supplying and from authorising the administration and supply of such drugs as may be specified in the direction.

(3) Paragraphs (a) and (b) of section 13 of the principal Act (offences) shall not apply to any such contravention as aforesaid; but any person who contravenes a direction under subsection (2) of this section shall be guilty of an offence against the principal Act.

Investigation
of
contraventions
of regulations.

2.—(1) If the Secretary of State considers that there are grounds for giving a direction under subsection (2) of section 1 of this Act on account of such a contravention as aforesaid by a medical practitioner, he may refer the case to a tribunal constituted for the purpose in accordance with the following provisions of this Act; and it shall be the duty of the tribunal to consider the case and report on it to the Secretary of State.

(2) Where the tribunal finds that there has been no such contravention as aforesaid by the medical practitioner in respect of whom the reference is made (in this Act referred to as "the respondent") or finds that there has been such a contravention but does not recommend the giving of a direction under the said subsection (2) in respect of the respondent, the Secretary of State shall cause notice to that effect to be served on the respondent.

(3) Where the tribunal finds that there has been such a contravention as aforesaid by the respondent and considers that a direction under the said subsection (2) should be given in respect of him, the tribunal shall include in its report a recommendation to that effect indicating the drugs which the tribunal considers should be specified in the direction or indicating that it should specify all drugs.

(4) Where the tribunal makes such a recommendation as aforesaid, the Secretary of State shall cause a notice to be served on the respondent stating whether or not he proposes to give a direction pursuant thereto, and where he does so propose the notice shall—

(a) set out the terms of the proposed direction; and

(b) inform the respondent that consideration will be given to any representations relating to the case which are made by him in writing to the Secretary of State within the period of twenty-eight days beginning with the date of service of the notice.

(5) If any such representations are received by the Secretary of State within the period aforesaid, he shall refer the case to an advisory body constituted for the purpose in accordance with the following provisions of this Act; and it shall be the duty of the advisory body to consider the case and to advise

the Secretary of State as to the exercise of his powers under subsection (6) of this section.

(6) After the expiration of the said period of twenty-eight days and, in the case of a reference to an advisory body under subsection (5) of this section, after considering the advice of that body, the Secretary of State may either—

- (a) give in respect of the respondent a direction under subsection (2) of section 1 of this Act specifying all or any of the drugs indicated in the recommendation of the tribunal ; or
- (b) order that the case be referred back to the tribunal, or referred to another tribunal constituted as aforesaid ; or
- (c) order that no further proceedings under this section shall be taken in the case.

3.—(1) The provisions of the Schedule to this Act shall have effect with respect to the constitution and procedure of any tribunal or advisory body appointed for the purposes of section 2 of this Act, and with respect to the other matters there mentioned ; and any expenses of the Secretary of State under that Schedule shall be defrayed out of moneys provided by Parliament. Provisions supplementary to s. 2.

(2) Without prejudice to any other mode of service, any notice or other document falling to be served on the respondent in pursuance of the said section 2 or the following provisions of this section may be served by post and shall be deemed to be properly addressed if it is addressed to him at his last address as known to the Secretary of State.

(3) Where a case is referred or referred back to a tribunal in pursuance of subsection (6) of the said section 2, the provisions of that section shall apply as if the case had been referred to the tribunal in pursuance of subsection (1) of that section, and any finding, recommendation or advice previously made or given in respect of the case in pursuance of that section shall be disregarded.

(4) The Secretary of State shall cause a copy of any order or direction made or given by him in pursuance of the said subsection (6) to be served on the respondent and shall cause notice of any such direction to be published in the London, Edinburgh and Belfast Gazettes.

(5) The Secretary of State may at any time give a direction cancelling or suspending any direction given by him as aforesaid or cancelling any direction of his under this subsection by which a direction so given is suspended, and shall cause a copy of any direction of his under this subsection to be served on the respondent and notice of it to be published as aforesaid.

Safe custody
etc. of drugs.

4.—(1) The Secretary of State may by regulations make provision—

- (a) for requiring precautions to be taken for the safe custody of drugs of any description specified in the regulations which are kept on premises of a description so specified ;
- (b) for requiring the keeping of records of drugs in respect of which such precautions are required to be taken ;
- (c) for the inspection of any precautions taken or records kept in pursuance of this section ; and
- (d) as to the manner in which drugs are to be packed for sale by a person who, within the meaning of the regulations, is a manufacturer of drugs or a dealer in bulk in drugs.

(2) Regulations under this section may provide that such of the requirements imposed by virtue of paragraph (a) above as may be specified in the regulations shall not apply to drugs kept on premises occupied for the purposes of his business by such a person as is mentioned in paragraph (d) above ; but the Secretary of State may, by a notice in writing served on such a person in such manner as may be specified by regulations under this section, specify the precautions or further precautions to be taken for the safe custody of any drugs specified in the notice which are kept on premises so specified and occupied by him as aforesaid, and the precautions specified in such a notice shall be deemed to be required by regulations made in pursuance of the said paragraph (a).

1964 c. 64.

(3) Regulations under this section may also provide that where a person of a kind mentioned in section 1(2) of the Drugs (Prevention of Misuse) Act 1964 is convicted of an offence against the principal Act consisting of a contravention of regulations under this section the Secretary of State may, by a direction given in such manner and after such consultations (if any) as may be specified in the regulations, provide that the said section 1(2) shall not apply to that person while the direction remains in force.

(4) Without prejudice to the provisions of section 7(2) of this Act, section 14 of the principal Act (which relates to the entry and search of premises to obtain evidence of offences) shall have effect as if the reference to Part III of that Act in subsection (1) included a reference to this section and as if references to Part I of the Schedule to that Act included references to the Schedule to the said Act of 1964 ; and section 16(2) of the principal Act (which among other things limits the penalty in respect of an offence relating to the keeping of books which was committed through inadvertence) shall have effect as if the reference to the keeping of books included a reference to the

keeping of records in pursuance of paragraph (b) of subsection (1) of this section.

(5) Nothing in this section shall be construed as derogating from the provisions of any other enactment relating to matters in respect of which provision may be made under this section.

5. The Secretary of State may by regulations make pro- vision— Further powers to make regulations.

(a) for excluding the application of section 13 of the principal Act (offences) in such cases as may be specified by the regulations ;

(b) for applying any of the provisions of sections 2 and 3 of this Act and the Schedule thereto, with such modifications (if any) as may be specified by the regulations—

(i) in relation to any proposal by the Secretary of State to give a direction in pursuance of subsection (3) of section 4 of this Act or to withdraw the authority to prescribe, possess, supply or otherwise deal in drugs conferred on any person by regulations under the principal Act ;

(ii) for such other purposes of regulations under the principal Act as may be so specified ;

(c) for the application of any of the provisions of this Act, the principal Act or regulations under either of those Acts to servants or agents of the Crown, subject to such exceptions, adaptations and modifications as may be so specified.

6.—(1) If a constable has reasonable grounds to suspect that any person is in possession of a drug in contravention of the principal Act or regulations thereunder or in contravention of the Drugs (Prevention of Misuse) Act 1964, the constable may— Further powers to search and to obtain evidence. 1964 c. 64.

(a) search that person, and detain him for the purpose of searching him ;

(b) search any vehicle in which the constable suspects that the drug may be found, and for that purpose require the person in control of the vehicle to stop it ;

(c) seize and detain, for the purposes of proceedings under either of the Acts aforesaid, anything found in the course of the search which appears to the constable to be evidence of an offence against either of those Act.

(2) Nothing in subsection (1) of this section shall be construed as prejudicing any power of search or any power to seize or detain property which is exercisable by a constable apart from that subsection.

(3) Section 14(2) of the principal Act and section 3(1) of the said Act of 1964 (which provide for the issue of a search warrant authorising any constable named in the warrant to enter and search premises in connection with suspected offences under those Acts) shall have effect, in their application to Northern Ireland, with the omission of the words "named in the warrant" and, in their application otherwise than to Northern Ireland, with the substitution for those words of the words "acting for the police area in which the premises are situated"; and at the end of section 15 of the principal Act (which provides for the arrest of a suspected offender who may abscond or whose name and address are not known) there shall be inserted the words "or if he is not satisfied that a name and address furnished by that person as his name and address are true".

Increase of
certain
penalties
under
Customs and
Excise Act
1952 c. 44.

7.—(1) In relation to offences in connection with a prohibition or restriction imposed by section 2, section 7 or section 10 of the principal Act (importation and exportation of certain drugs and other substances), being offences committed after the commencement of this Act, sections 45(1), 56(2) and 304 of the Customs and Excise Act 1952 shall have effect as if for the words "imprisonment for a term not exceeding two years" there were substituted the words "imprisonment for a term not exceeding ten years".

(2) In section 283(2)(a) of the said Act of 1952 (mode of trial of offences punishable with imprisonment for two years), after the words "two years" there shall be inserted the words "or more".

Interpretation,
etc.

8.—(1) In this Act the following expressions have the meanings hereby assigned to them respectively, that is to say—

"contravention" includes failure to comply;

"drug" means any substance for the time being specified in Part I of the Schedule to the principal Act and includes—

(a) for the purposes of sections 4 and 6 of this Act, any drug to which Part I of the principal Act applies and any substance for the time being specified in the Schedule to the Drugs (Prevention of Misuse) Act 1964;

(b) for the purposes of section 5 of this Act, any drug to which Part I of the principal Act applies; and

(c) for the purposes of the said section 6, any drug to which Part II of the principal Act applies;

"medical practitioner" means a fully registered person within the meaning of the Medical Act 1956;

1964 c. 64.

1956 c. 76.

“the principal Act” means the Dangerous Drugs Act 1965 c. 15. 1965; and

“the respondent” has the meaning assigned to it by section 2(2) of this Act.

(2) This Act shall be construed as one with the principal Act.

(3) Any regulations or rules made by virtue of this Act may contain such incidental and supplemental provisions as the authority making the regulations or rules considers expedient, and may make different provision for different circumstances.

9.—(1) Subject to the provisions of this section, this Act extends to Northern Ireland. Application to Northern Ireland.

(2) In the application of this Act to Northern Ireland, for any reference to the Secretary of State (except in section 3(1)), the Treasury or the Home Department there shall be substituted respectively a reference to the Ministry of Home Affairs for Northern Ireland, the Ministry of Finance for Northern Ireland and the Ministry of Health and Social Services for Northern Ireland.

(3) Nothing in this Act shall authorise any department of the Government of Northern Ireland to incur any expenses attributable to the provisions of this Act until provision has been made by the Parliament of Northern Ireland for those expenses to be defrayed out of moneys provided by that Parliament.

10. This Act may be cited as the Dangerous Drugs Act 1967, Short title and citation. and this Act and the principal Act may be cited together as the Dangerous Drugs Acts 1965 and 1967.

Section 3.

SCHEDULE

TRIBUNALS AND ADVISORY BODIES

PART I

TRIBUNALS

Membership

1.—(1) A tribunal shall consist of five persons of whom—

- (a) one shall be a barrister, advocate or solicitor of not less than seven years' standing appointed by the Lord Chancellor to be the chairman of the tribunal; and
- (b) the other four shall be persons appointed by the Secretary of State from among medical practitioners nominated for the purposes of this Schedule by any body mentioned in sub-paragraph (2) below.

(2) The bodies aforesaid are the General Medical Council, the Royal Colleges of Physicians of London and Edinburgh, the Royal Colleges of Surgeons of England and Edinburgh, the Royal College of Physicians and Surgeons (Glasgow), the Royal College of Obstetricians and Gynaecologists, the Royal College of General Practitioners, the Royal Medico-Psychological Association and the British Medical Association.

(3) Sub-paragraph (1) of this paragraph shall have effect—

- (a) in relation to a tribunal in Scotland, as if for the reference to the Lord Chancellor there were substituted a reference to the Lord President of the Court of Session;
- (b) in relation to a tribunal in Northern Ireland, as if for the reference to the Lord Chancellor there were substituted a reference to the Lord Chief Justice of Northern Ireland.

Procedure

2. The quorum of a tribunal shall be the chairman and two other members of the tribunal.

3. Proceedings before a tribunal shall be held in private unless the respondent requests otherwise and the tribunal accedes to the request.

4.—(1) Subject to paragraph 5 of this Schedule, the Lord Chancellor may make rules as to the procedure to be followed, and the rules of evidence to be observed in proceedings before tribunals, and in particular—

- (a) for securing that notice that the proceedings are to be brought shall be given to the respondent at such time and in such manner as may be specified by the rules;
- (b) for determining who, in addition to the respondent, shall be a party to the proceedings;

- (c) for securing that any party to the proceedings shall, if he so requires, be entitled to be heard by the tribunal ;
- (d) for enabling any party to the proceedings to be represented by counsel or solicitor.

(2) Sub-paragraph (1) of this paragraph shall have effect—

- (a) in relation to a tribunal in Scotland, as if for the reference to the Lord Chancellor there were substituted a reference to the Secretary of State ;
- (b) in relation to a tribunal in Northern Ireland, as if for the reference to the Lord Chancellor there were substituted a reference to the Ministry of Home Affairs for Northern Ireland.

(3) Section 22 of the principal Act (which provides for regulations under that Act to be made by statutory instrument and to be subject to annulment) shall apply to rules under this paragraph as it applies to regulations under that Act but as if the reference to a Secretary of State in subsection (1) included a reference to the Lord Chancellor.

5.—(1) For the purpose of any proceedings before a tribunal in England or Wales or Northern Ireland the tribunal may administer oaths and any party to the proceedings may sue out writs of subpoena ad testificandum and duces tecum, but no person shall be compelled under any such writ to give any evidence or produce any document which he could not be compelled to give or produce on the trial of an action.

(2) The provisions of section 49 of the Supreme Court of Judicature (Consolidation) Act 1925, or of the Attendance of Witnesses Act 1854 (which provide special procedures for the issue of such writs so as to be in force throughout the United Kingdom) shall apply in relation to any proceedings before a tribunal in England or Wales or, as the case may be, in Northern Ireland as those provisions apply in relation to causes or matters in the High Court or actions or suits pending in the High Court of Justice in Northern Ireland.

(3) For the purpose of any proceedings before a tribunal in Scotland, the tribunal may administer oaths and the Court of Session shall on the application of any party to the proceedings have the like power as in any action in that court to grant warrant for the citation of witnesses and havers to give evidence or to produce documents before the tribunal.

6. Subject to the foregoing provisions of this Schedule, a tribunal may regulate its own procedure.

7. The validity of the proceedings of a tribunal shall not be affected by any defect in the appointment of a member of the tribunal or by reason of the fact that a person not entitled to do so took part in the proceedings.

Financial provisions

8. The Secretary of State may pay to any member of a tribunal fees and travelling and other allowances in respect of his services in accordance with such scales and subject to such conditions as the Secretary of State may determine with the approval of the Treasury.

9. The Secretary of State may pay to any person who attends as a witness before the tribunal sums by way of compensation for the loss of his time and travelling and other allowances in accordance with such scales and subject to such conditions as may be determined as aforesaid.

10. If a tribunal recommends to the Secretary of State that the whole or part of the expenses properly incurred by the respondent for the purposes of proceedings before the tribunal should be defrayed out of public funds, the Secretary of State may if he thinks fit make to the respondent such payments in respect of those expenses as the Secretary of State considers appropriate.

11. Any expenses incurred by a tribunal with the approval of the Secretary of State shall be defrayed by the Secretary of State.

Supplemental

12. The Secretary of State shall make available to a tribunal such accommodation, the services of such officers and such other facilities as he considers appropriate for the purpose of enabling the tribunal to perform its functions.

PART II

ADVISORY BODIES

Membership

13.—(1) An advisory body shall consist of three persons of whom—

- (a) one shall be a person who is of counsel to Her Majesty and is appointed by the Lord Chancellor to be the chairman of the advisory body ; and
- (b) another shall be a person appointed by the Secretary of State, being either the Chief Medical Officer of the Home Department or the Scottish Home and Health Department or a medical practitioner who is an officer of a Government department and is nominated by the Secretary of State to act as the deputy of the Chief Medical Officer for the purposes of this paragraph ; and
- (c) the other shall be a person appointed by the Secretary of State from among medical practitioners nominated as mentioned in paragraph 1 of this Schedule.

(2) Sub-paragraph (3) of paragraph 1 of this Schedule shall apply for the purposes of this paragraph as it applies for the purposes of that paragraph, but as if for references to a tribunal there were substituted references to an advisory body.

Procedure

14. The respondent shall be entitled to appear before and be heard by the advisory body either in person or by counsel or solicitor.

15. Subject to the provisions of this Part of this Schedule, an advisory body may regulate its own procedure.

Application of provisions of Part I

16. Paragraphs 3, 7, 8 and 10 to 12 of this Schedule shall apply in relation to an advisory body as they apply in relation to a tribunal.